8 (1) Unless otherwise provided in this Act, a claim may not be brought after the earlier of

(a) two years from the day on which the claim is discovered; and

(b) fifteen years from the day on which the act or omission on which the claim is based occurred.

(2) A claim is discovered on the day on which the claimant first knew or ought reasonably to have known

(a) that the injury, loss or damage had occurred;

(b) that the injury, loss or damage was caused by or contributed to by an act or omission;

(c) that the act or omission was that of the defendant; and

(d) that the injury, loss or damage is sufficiently serious to warrant a proceeding.

(3) For the purpose of clause (1)(b), the day an act or omission on which a claim is based occurred is

(a) in the case of a continuous act or omission, the day on which the act or omission ceases; and

(b) in the case of a series of acts or omissions concerning the same obligation, the day on which the last act or omission in the series occurs.

28. Under the first prong of the *Shannex* test, above, the moving party must show that there is no genuine material fact in dispute. In a case where the moving party argues the limitation period expired, they must show that the claimant discovered or ought to have discovered their loss or injury was the result of an act or omission caused by the defendant. The claimant's knowledge of the loss may be actual or constructive, as discussed by the Supreme Court of Canada in *Grant Thornton LLP v New Brunswick*,[17] as follows:

In my view, a claim is discovered when the plaintiff has knowledge, actual or constructive, of the material facts upon which a plausible inference of liability on the defendant's part can be drawn. It follows from this standard

17 *Grant*, para 3.